



CHAPTER cxiv.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Electric Lighting Acts 1882 and 1888 relating to Barnet Brockenhurst Farnham Gosport and Alverstoke Houghton-le-Spring and District (Amendment) Lichfield Ludlow Lytham St. Albans (Rural) and Ware. [4th August 1905.] A.D. 1905.

WHEREAS under the authority of the Electric Lighting Acts 1882 and 1888 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act: 45 & 46 Vict.
c. 56.
51 & 52 Vict.
c. 12.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Acts as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Electric Lighting Orders Confirmation (No. 6) Act 1905. Short title.

2. The several Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Orders in
schedule
confirmed.

A.D. 1905.
For protec-
tion of Hert-
fordshire
County
Council.

3.—(1) Nothing in the St. Albans Rural Electric Lighting Order 1905 confirmed by this Act shall take away or abridge any power to repair open or break up any road or county bridge along or across which any pipe wire cable or electric main is laid or any other power vested in the Hertfordshire County Council (in this section called “the council”) for any of the purposes for which the council is constituted but before commencing any work pursuant to such powers whereby any pipe wire cable or electric main will be interfered with they shall (except in case of emergency in which cases no notice shall be necessary) give the company notice of their intention to commence such work specifying the time at which they will begin to do so such notice to be given three days at least before the commencement of the work and shall always complete such work with all reasonable expedition and cause as little damage or inconvenience to the company as circumstances admit.

(2) The council shall not be liable to pay to the company any compensation for injury done to any pipes wires cables or electric mains by the execution of such works or for loss occasioned thereby or for the reasonable exercise of the powers so vested in them as aforesaid.

(3) The council shall not execute such work so far as it immediately affects any pipe wire cable or electric main except under the superintendence of the company unless they refuse or neglect to give such superintendence at the time specified in the notice for the commencement of the work or discontinue the same during the progress of the work and they shall execute such work at their own expense and to the reasonable satisfaction of the company Provided that any additional expense imposed upon them by reason of the existence of any pipes wires cables or electric mains of the company in any road or place shall be borne by the company.

(4) Any difference which may arise between the company and the council under this section shall be determined by arbitration.

SCHEDULE.

A.D. 1905.
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LIST OF ORDERS.

1. BARNET.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the North Metropolitan Electrical Power Distribution Company Limited.
2. BROCKENHURST.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Messrs. Christy Brothers and Middleton.
3. FARNHAM.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Farnham and District Electric Supply Company Limited.
4. GOSPORT AND ALVERSTOKE.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Gosport and Alverstone Electric Lighting Company Limited.
5. HOUGHTON-LE-SPRING AND DISTRICT.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Sunderland District Electric Tramways Limited.
6. LICHFIELD.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Foote and Milne Limited.
7. LUDLOW.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to William Norton.
8. LYTHAM.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Foote and Milne Limited.
9. ST. ALBANS (RURAL).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the St. Albans and District Electric Supply Company Limited.
10. WARE.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the North Metropolitan Electrical Power Distribution Company Limited.

A.D. 1905.

BARNET ELECTRIC LIGHTING.

Barnet. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the North Metropolitan Electrical Power Distribution Company Limited in respect of the Urban District of Barnet in the County of Hertford.

- Short title. 1. This Order may be cited as the Barnet Electric Lighting Order 1905.
- Incorporation of Electric Lighting (Clauses) Act 1899. 2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.
- Undertakers. 3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the North Metropolitan Electrical Power Distribution Company Limited being a company registered under the Companies Acts 1862 to 1898 with limited liability whose registered offices are situated at Evelyn House Finsbury Pavement London E.C.
- Area of supply. 4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.
- Power to break up streets. 5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.
- Compulsory works. 6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.
- Maximum prices. 7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.
- As to supply of electricity where consumer has separate supply. 8. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Undertakers a supply of electrical energy to premises having a separate supply unless he shall have previously agreed to pay to the Undertakers such minimum annual sum as will give to the Undertakers a reasonable return

[5 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxiv.]
(No. 6) Act, 1905.

on the capital expenditure and other standing charges incurred by the Undertakers to meet the possible maximum demand of such person. The sum to be so paid shall be determined in default of agreement by arbitration.

A.D. 1905.
Barnet.

9. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred and fifty pounds.

Deposit.

10.—(1) The local authority may on giving twelve months' notice in writing to the Undertakers terminating at the expiration of 14 21 28 or 35 years from the commencement of this Order require the Undertakers to sell and thereupon the Undertakers shall sell to them the undertaking authorised by this Order (including all lands buildings works materials and plant suitable to and used by the Undertakers for the purposes of the undertaking) upon the terms of the local authority paying to the Undertakers the amount of capital properly expended by them upon the undertaking as appearing by the annual statement of accounts audited by the Board of Trade and in addition thereto a sum equal to one third of that capital expenditure.

Purchase by
local authority.

(2) The amount to be paid on any such purchase shall be determined in default of agreement by arbitration. The Board of Trade may determine any other question which arises with reference to the purchase and in default of agreement as to the date on which the purchase is to take effect may fix that date.

(3) From the date on which any such purchase takes effect the undertaking shall vest in the local authority freed from all debts mortgages or other similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity within the area of supply under this Order or the principal Act shall absolutely cease and determine and shall vest in the local authority who shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(4) The power of purchase given by this section shall be in addition to and not in derogation of the power of the local authority to purchase under section 2 of the Electric Lighting Act 1888.

11. The Barnet Local Board Electric Lighting Order 1893 and the Barnet Urban District Council Electric Lighting Order 1900 are hereby repealed provided that as respects the undertakings authorised by those Orders and any rights or obligations acquired or incurred thereunder this Order shall have effect as if those undertakings were authorised by this Order.

Repeal of
Barnet Electric
Lighting Orders
1893 and 1900.

12. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of Order.

A.D. 1905.

Barnet.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Barnet as constituted on the 1st day of January 1905.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Fitzjohn's Avenue Orchard Road Elm Road.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Wood Street (from public lamp No. 15 opposite a house called "Springfield" to the boundary of the area of supply) Argyle Road Granville Road Queen's Road Bells Hill (from public lamp No. 35 opposite a house "Oak Hill" to the boundary of the area of supply) Manor Road (from public lamp No. 34 opposite "Dudley House" to the boundary of the area of supply).

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter:—

(a) For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence; or

(b) At the option of the consumer—

A.D. 1905.

- (i) For any amount up to twenty units thirteen shillings and fourpence;
- (ii) For any further amount beyond twenty units but not exceeding the equivalent of one hundred hours of supply at the maximum power which has been demanded by him at the rate of eightpence per unit; and
- (iii) For any further quantity exceeding the equivalent of one hundred hours of supply at that maximum power at the rate of twopence per unit.

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Barnet.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

BROCKENHURST ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Messrs. Christy Brothers and Middleton in respect of part of the Parish of Brockenhurst in the Rural District of Lymington in the County of Southampton.

Brookenhurst

1. This Order may be cited as the Brockenhurst Electric Lighting Order 1905.

Short title.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Incorporation
 of Electric
 Lighting
 (Clauses) Act
 1899.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are Messrs. Christy Brothers and Middleton of Chelmsford Essex.

Undertakers.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Area of supply.

[Ch. cxiv.] *Electric Lighting Orders Confirmation* [5 EDW. 7.]
(No. 6) Act, 1905.

- A.D. 1905. 5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the railway which is mentioned in the Second Schedule to this Order.
- Brockenhurst.*
Power to break up railway.
Compulsory works. 6. The streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.
- Maximum prices. 7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.
- Deposit. 8. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred pounds.
- Powers not to be exercised unless undertaking is transferred to a registered company. 9.—(1) The powers given by this Order shall not be exercised unless within six months or such extended period not exceeding in the whole one year as the Board of Trade allow after the commencement of this Order the Undertakers transfer the undertaking to a limited company registered under the Companies Acts 1862 to 1900 and approved by the Board of Trade for the purpose.
- (2) Within that period the Undertakers may transfer and the company to whom the transfer is to be made may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade.
- (3) On any such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect of the undertaking shall be transferred to and may be exercised by and shall attach to the company to whom the transfer is made and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.
- For protection of Commissioners of Woods 10. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the King's most Excellent Majesty and in particular nothing therein shall authorise the Undertakers to take use or in any manner interfere with any land or hereditament or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose (which consent the Commissioners are hereby authorised to give).
- Commencement of Order. 11. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

A.D. 1905.

Brockenhurst.

FIRST SCHEDULE.

AREA OF SUPPLY.

So much of the parish of Brockenhurst in the rural district of Lymington in the county of Southampton as is bounded on the south by the parish boundary on the east by the Lymington River from the intersection of that boundary with the said river to a point north-westward where the said river passes under the road at or near the Government Bench mark stone marked 29·7 feet above Ordnance datum level thence in a north-westerly direction along that road to the point where the same crosses the London and South Western Railway at Colleys Green thence along that road in a north-westerly and westerly direction to the point where the said road joins the Lymington and Southampton Road at Brockenhurst Bridge thence along the said Lymington River in a north-westerly direction to its junction with the stream known as the Ober Water at Bolderford Bridge thence in a south-westerly direction along the said Ober Water to a point measured one mile and a quarter or thereabouts south-westerly from the said Bolderford Bridge and bounded on the west from that point by an imaginary line drawn due south to a point on the southern boundary of the parish measured three-quarters of a mile westerly from the cottage known as "Caters Cottage" situate on the southern boundary of the parish aforesaid Provided that in case of difference between this description and the area as delineated on the deposited map the latter shall prevail.

SECOND SCHEDULE.

Railway which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Level crossing over the London and South Western Railway at Brockenhurst Station.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

The Southampton and Lymington Road from the level crossing near Brockenhurst Railway Station to Martins Road Station Road High Street from Station Road to the ford.

A.D. 1905.
Brockenhurst.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt per hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

FARNHAM ELECTRIC LIGHTING.

Farnham. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Farnham and District Electric Supply Company Limited in respect of the Urban District of Farnham in the County of Surrey.

Short title. 1. This Order may be cited as the Farnham Electric Lighting Order 1905.

Incorporation of Electric Lighting (Clauses) Act 1899. 2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers. 3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Farnham and District Electric Supply Company Limited a Company registered under the Companies Acts 1862 to 1900 whose registered office is situate at “Lyenne” Firgrove Hill Farnham.

[5 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxiv.]
(No. 6) Act, 1905.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

A.D. 1905

Farnham.

Area of supply.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the railways which are also mentioned in that schedule.

Power to break
up streets &c.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Compulsory
works.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Maximum
prices.

8. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred and fifty pounds.

Deposit.

9. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Farnham as constituted at the commencement of this Order.

A.D. 1905.

Farnham.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority and Railways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

STREETS :

Mount Pleasant West End Estate Potter's Yard and West End Schools Road Park Road St. James' Avenue Castle View Victoria Road Averley Towers Road Weydon Hill Road Elms Road Ridgeway Hill Road Great Austins Road the roads leading over the bridges across the London and South Western Railway at Firgrove Hill and Weydon Hill.

RAILWAYS :

London and South Western Railway—the level crossing at Station Hill.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Castle Street from the Borough to Farnham Castle the Borough from West Street to East Street West Street from the Borough to Mead Lane East Street from the Borough to Congregational Sunday Schools South Street from Park Lane to the railway station (including Station Hill).

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

A.D. 1905.

Farnham.

GOSPORT AND ALVERSTOKE ELECTRIC LIGHTING.

*Gosport and
Alverstoke.*

1. This Order may be cited as the Gosport Electric Lighting Order 1905. Short title.

**Incorporation
of Electric
Lighting
(Clauses) Act
1899.**

(2) Section 69 of the said schedule as so incorporated shall be read as if the words "the Admiralty or the Secretary of State for War" were added after the words "Postmaster-General" at the end of the paragraph (c) of subsection (1) of that section.

3. The Undertakers for the purposes of this Order and within the Undertakers. meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Gosport and Alverstoke Electric Lighting Company Limited being a company registered under the Companies Acts 1862 to 1900 with limited liability and having its registered offices at 74 Cheapside in the city of London.

4. The area of supply for the purposes of this Order and within the Area of supply. meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable

[Ch. cxiv.] *Electric Lighting Orders Confirmation* [5 Edw. 7.]
(No. 6) Act, 1905.

A.D. 1905. by the local authority which are mentioned in the Second Schedule to this Order and the railways which are also mentioned in that schedule.

Gosport and Alverstoke.

Compulsory works.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Maximum prices.

7.—(1) The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

(2) Two years shall be substituted for seven years in subsection (2) of section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 as incorporated with this Order both as respects the time after which the first alteration of prices and methods of charge may be made and as respects the period after which subsequent alterations may be made.

Deposit.

8. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred and fifty pounds.

Purchase by local authority.

9.—(1) The local authority may within six months after the expiration of a period of fourteen twenty-one twenty-eight or thirty-five years from the commencement of this Order by one year's notice in writing require the Undertakers to sell and thereupon the Undertakers shall sell to them their undertaking under this Order (including all lands buildings works materials and plant suitable to and used by the Undertakers for the purpose of the undertaking) upon the terms of the local authority paying to the Undertakers an amount equal to the fair market value of the undertaking as a going concern regard being had to the profits earned by the company in the year in which the notice is given but not to the prospective or future increase of profits that value to be determined in default of agreement by arbitration.

(2) The Board of Trade may determine any question which arises with reference to the purchase which is not to be determined by arbitration and in default of agreement as to the date on which the purchase is to take effect may fix that date.

(3) From the date on which the purchase takes effect the undertaking shall vest in the local authority freed from all debts mortgages or other similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity within the area of the supply under this Order or the principal Act shall absolutely cease and determine and shall vest in the local authority.

(4) The power of purchase given by this section shall be in addition to and not in derogation of the power of the local authority to purchase under section 2 of the Electric Lighting Act 1888.

10. Nothing contained in this Order shall authorise the Undertakers to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to or under the management of the Admiralty or the Secretary of State for War without the consent in writing of the Admiralty or the Secretary of State as the case requires first had and obtained for that purpose (which consent the Admiralty and Secretary of State are hereby authorised to give) neither shall anything in this Order contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the Admiralty or the Secretary of State for War.

A.D. 1905.

*Gosport and
Alverstoke.*

Saving rights
of Admiralty
and War
Office.

11. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

So much of the urban district of Gosport and Alverstoke as is bounded on the north and west by lands belonging to the War Department on the south by Stokes Bay and Spithead and on the east by Portsmouth Harbour :

Provided that in case of difference between the above description and the area delineated upon the deposited map the latter shall prevail.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority and Railways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS :

Westfield Road Avenue Road Elmhurst Road King's Road Percy Road
Sydney Road Richmond Road Upper Queen's Road Parham Road
White's Slip Linden Grove Stoke Gardens Cranborne Road Burnett
Road Cambridge Road Hartington Road.

(b) RAILWAYS :

The following level crossings of the London and South Western
Railway Company :—

Cambridge Road Crossing Lees Lane Crossing Little Anglesey
Crossing Anglesey Crossing Mumby Road Crossing.

A.D. 1905.

Gosport and
Alverstoke.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

High Street Clarence Road Lees Lane Beach Street Mumby Road Alver Road Spring Garden Lane Whitworth Road Walpole Road Gordon Road Forton Road Stoke Road Lower Queen's Road Brockhurst Road from Forton Road to Elson Lane Bury Road Shaftesbury Road North and South Cross Streets The Avenue Castle Row The Green Crescent Road North Street St. Mark's Road Harbour Road Clarence Square Anglesey Road Foster Road.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units ten shillings and for each unit over twenty units sixpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

HOUGHTON-LE-SPRING AND DISTRICT ELECTRIC
LIGHTING.

A.D. 1905.

*Houghton-le-
Spring and
District.*

*Provisional Order granted by the Board of Trade under the
Electric Lighting Acts 1882 and 1888 amending the
Houghton-le-Spring and District Electric Lighting Order
1904.*

1. This Order may be cited as the Houghton-le-Spring and District Electric Lighting Order 1904 Amendment Order 1905. Short title.

2. Except as is by this Order otherwise provided the Houghton-le-Spring Electric Lighting Order 1904 (hereinafter called "the principal Order") and this Order shall be read and construed together as one Order and may be cited together as the Houghton-le-Spring and District Electric Lighting Orders 1904 and 1905. This Order and
principal Order
to be read
together.

3. At any time within one year after the commencement of this Order the Sunderland District Electric Tramways Limited being the Undertakers for the purposes of the principal Order may with the consent of and upon such terms and conditions as may be approved by the Board of Trade transfer the undertaking authorised by the principal Order to the Houghton-le-Spring and District Electric Lighting Company Limited a company registered under the Companies Acts 1862 to 1900 whose registered office is at 13 St. Helens Place London E.C. and upon that transfer all the rights powers authorities obligations and liabilities of the Undertakers in respect to the undertaking shall be transferred to and may be exercised by and shall attach to that company and that company shall subject to the provisions of the principal Order become the Undertakers for the purposes of the principal Order. Power to
transfer.

4. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commence-
ment of Order.

LICHFIELD ELECTRIC LIGHTING.

*Provisional Order granted by the Board of Trade under the
Electric Lighting Acts 1882 and 1888 to Foote and Milne
Limited in respect of the City of Lichfield in the County of
Stafford.* Lichfield.

1. This Order may be cited as the Lichfield Electric Lighting Order 1905. Short title.

[Ch. cxiv.] *Electric Lighting Orders Confirmation*
(No. 6) Act, 1905.

[5 EDW. 7.]

A.D. 1905.

Lichfield.
Incorporation of
Electric Lighting
(Clauses) Act
1899.

Undertakers.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are Foote and Milne Limited a company registered under the Companies Acts 1862 to 1900 whose registered office is at 66 Victoria Street in the city of Westminster.

Area of supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Power to break
up streets &c.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the railways which are also mentioned in that schedule.

Compulsory
works.

6. The street throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 is that mentioned in the Third Schedule to this Order.

Maximum
prices.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Powers not to
be exercised
unless under-
taking trans-
ferred to a
registered
company.

8.—(1) The powers given by this Order shall not be exercised unless within six months or such extended period not exceeding in the whole twelve months as the Board of Trade allow after the commencement of this Order the Undertakers transfer the undertaking to a limited company registered under the Companies Acts 1862 to 1900 and approved by the Board of Trade for the purpose.

(2) Within that period the Undertakers may transfer and the company to whom the transfer is to be made may take a transfer of the undertaking with the consent of and upon such terms and conditions as may be approved by the Board of Trade and upon any such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect of the undertaking shall be transferred to and may be exercised by and shall attach to that company and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

Purchase of
undertaking
by local autho-
rity.

9.—(1) The local authority may at any time after the expiration of ten years from the commencement of this Order by twelve months' notice in

[5 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxiv.]
(No. 6) Act, 1905.

writing require the Undertakers to sell and thereupon the Undertakers shall sell to them the undertaking authorised by this Order upon the terms of the payment by the local authority to the Undertakers of the fair market value of the undertaking as a going concern that value to be determined in default of agreement by arbitration.

A.D. 1905.
—
Lichfield.

(2) The Board of Trade may determine any question which arises with reference to the purchase which is not to be determined by arbitration and in default of agreement as to the date at which the purchase is to take effect may fix that date.

(3) From the date at which the purchase takes effect the undertaking shall vest in the local authority freed from all debts mortgages or other similar obligations of the Undertakers or attaching to the undertaking and the power of the Undertakers in relation to the supply of electricity within the area of supply under this Order or the principal Act shall cease and shall vest in the local authority who shall become the Undertakers for the purposes of this Order.

(4) The power of purchase given to the local authority by this section shall be in addition to and not in derogation of their power to purchase under section 2 of the Electric Lighting Act 1888.

10. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred and fifty pounds.

11. The Lichfield Electric Lighting Order 1901 is hereby repealed without prejudice to anything done or suffered thereunder.

Repeal of Lich-
field Electric
Lighting
Order 1901.

12. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The city of Lichfield as constituted at the commencement of this Order.

A.D. 1905.

SECOND SCHEDULE.

Lichfield.

List of Streets not repairable by the Local Authority and of the Railways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS:

The road in front of Chappells Terrace.

(b) RAILWAYS:

The level crossings of the London and North-Western Railway (South Staffordshire Section) situate at Fosseyway and on the Old Burton Road.

THIRD SCHEDULE.

Street throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Market Street.

FOURTH SCHEDULE.

MAXIMUM PRICES

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand amperes flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this Schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

A.D. 1905.

Ludlow.

Short title.

**Incorporation
of Electric
Lighting
(Clauses) Act
1899.**

Undertaker.

Powers not to be exercised unless undertaking is transferred to a registered company or local authority.

(2) Within that period the Undertaker may transfer and the company to whom the transfer is made or the local authority may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade.

(3) On any such transfer the rights powers authorities obligations and liabilities of the Undertaker in respect to the undertaking shall be transferred to and may be exercised by and shall attach to the company to whom the transfer is made or to the local authority as the case may be and that company or local authority shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

Area of supply.

**Compulsory
works.**

[Ch. cxiv.] *Electric Lighting Orders Confirmation* [5 Edw. 7.]
(No. 6) Act, 1905.

A.D. 1905. *Ludlow.* Lighting (Clauses) Act 1899 are those mentioned in the Second Schedule to this Order.

Maximum prices. 7. The maximum prices which may be charged by the Undertaker as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Third Schedule to this Order.

Deposit. 8. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred pounds.

Purchase by local authority. 9.—(1) The local authority (if they do not become the Undertakers under the foregoing provisions of this Order) may at the expiration of a period of twenty years from the commencement of this Order or at the expiration of any subsequent period of ten years by six months' previous notice in writing require the Undertaker to sell and thereupon the Undertaker shall sell to them the undertaking authorised by this Order including all lands buildings works materials and plant suitable to and used by the Undertaker for the purposes of the undertaking.

(2) The price to be paid on any such purchase shall according as may be stated by the local authority in their notice to purchase under this section be either—

(a) a sum equal to the fair market value of the undertaking as a going concern ; or

(b) a sum equal to the total amount of capital properly expended on the undertaking with the addition of such an amount as together with any sums paid or available for payment as dividends will make up a further sum equal to seven per cent. per annum upon the capital so expended.

(3) The amount payable on purchase under this section shall be ascertained in default of agreement by arbitration and the Board of Trade may determine any other question which arises with reference to the purchase and in default of agreement as to the date on which the purchase is to take effect may fix that date.

(4) From the date on which the purchase takes effect the undertaking shall vest in the local authority freed from all debts mortgages or other similar obligations of the Undertaker or attaching to the undertaking and the powers of the Undertaker in relation to the supply of electricity within the area of supply under this Order or the principal Act shall absolutely cease and determine and shall vest in the local authority who shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(5) The power of purchase given by this section shall be in addition to and not in derogation of the power of the local authority to purchase under section 2 of the Electric Lighting Act 1888.

10. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

A.D. 1905.
Ludlow.
Commence-
ment of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The borough of Ludlow as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of Streets and parts of Streets throughout which the Undertaker is to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Corve Street from Station Road to Bull Ring Bull Ring Tower Street from Bull Ring to the junction of Upper and Lower Galdeford King Street Broad Street from King Street to Brand Lane High Street Castle Street and Mill Street from Castle Street to Bell Lane.

THIRD SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertaker charges any consumer by the actual amount of energy supplied to him he shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

A.D. 1905.

SECTION 2.

Ludlow.

Where the Undertaker charges any consumer by the electrical quantity contained in the supply given to him he shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertaker under the Board of Trade regulations.

LYTHAM ELECTRIC LIGHTING.

Lytham.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Foote and Milne Limited in respect of the Urban District of Lytham in the County of Lancaster.

Short title.

1. This Order may be cited as the Lytham Electric Lighting Order 1905.

Incorporation
of Electric
Lighting
(Clauses) Act
1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are Foote and Milne Limited a company registered under the Companies Acts 1862 to 1900 whose registered office is at 66 Victoria Street in the city of Westminster.

Area of supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Power to break
up streets &c.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the tramways which are also mentioned in that schedule.

Compulsory
works.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

[5 Edw. 7.] *Electric Lighting Orders Confirmation* [Ch. cxiv.]
(No. 6) Act, 1905.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

A.D. 1905.

Lytham.
Maximum
prices.

8. The Undertakers shall not be entitled to break up any streets for the purpose of laying down distributing mains between the fifteenth day of May and the fifteenth day of September in any year except with the consent in writing of the local authority.

Restriction as
to time for
laying distri-
buting mains.

9.—(1) The powers given by this Order shall not be exercised unless within six months or such extended period not exceeding in the whole twelve months as the Board of Trade allow after the commencement of this Order the Undertakers transfer the undertaking to a limited company registered under the Companies Acts 1862 to 1900 and approved by the Board of Trade for the purpose.

Powers not to
be exercised
unless under-
taking trans-
ferred to a
registered
company.

(2) Within that period the Undertakers may transfer and the company to whom the transfer is to be made may take a transfer of the undertaking with the consent of and upon such terms and conditions as may be approved by the Board of Trade and upon any such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect of the undertaking shall be transferred to and may be exercised by and shall attach to that company and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

10.—(1) The local authority may at any time after the commencement of this Order by twelve months' notice in writing require the Undertakers to sell and thereupon the Undertakers shall sell to them the undertaking authorised by this Order upon the terms of the payment by the local authority to the Undertakers of the fair market value of the undertaking as a going concern:

Purchase of
undertaking
by local autho-
rity.

Provided that the price to be paid shall if the local authority so determine be a sum equal to the capital reasonably expended on the undertaking with the addition of a sum equal to ten per cent. thereon if the purchase be made after the expiration of fifteen years from the commencement of this Order or a sum equal to six per cent. thereon if the purchase be made after the expiration of twenty-two years from that date or a sum equal to four per cent. thereon if the purchase be made after the expiration of twenty-nine years from that date.

(2) Any question arising as to the amount to be paid in the event of a purchase under this section shall in default of agreement be determined by arbitration. The Board of Trade may determine any other question which arises with reference to the purchase and in default of agreement as to the date at which the purchase is to take effect may fix that date.

(3) From the date at which the purchase takes effect the undertaking shall vest in the local authority freed from all debts mortgages or similar obligations of the Undertakers or attaching to the undertaking and the

[Ch. cxiv.] *Electric Lighting Orders Confirmation* [5 EDW. 7.]
(No. 6) Act, 1905.

A.D. 1905. power of the Undertakers in relation to the supply of electricity within the
—
Lytham. area of supply under this Order or the principal Act shall cease and shall
vest in the local authority who shall become the Undertakers for the purposes
of this Order.

(4) The power of purchase given to the local authority by this section
shall be in addition to and not in derogation of their power to purchase
under section 2 of the Electric Lighting Act 1888.

Deposit. 11. The sum to be deposited or secured in pursuance of section 5 of the
schedule to the Electric Lighting (Clauses) Act 1899 is two hundred and
fifty pounds.

Repeal of
Lytham Elec-
tric Lighting
Order 1900. 12. The Lytham Electric Lighting Order 1900 is hereby repealed
without prejudice to anything done or suffered thereunder.

Commence-
ment of Order. 13. This Order shall come into force upon the day when the Act con-
firming this Order is passed and that day for the purposes of the Electric
Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Lytham as constituted at the commencement of
this Order.

SECOND SCHEDULE.

*List of Streets not repairable by the Local Authority and of the Tramways
which may be broken up by the Undertakers in pursuance of the
special powers granted by this Order.*

(a) STREETS:

St. Paul's Avenue from Clifton Drive to the Marine Parade Myra Road
from Clifton Drive to the Inner Promenade Cyprus Avenue from
Clifton Drive to the Inner Promenade Pollux Gate from Crete Gardens
to Lake Road Lake Road from Clifton Drive to the Inner Promenade
Marine Drive from Clifton Drive to St. Paul's Avenue Clifton Drive
from Ansdell Road to St. Paul's Avenue Ansdell Road from Promenade
to Blackpool Road Rossall Road from Ansdell Road to Golf Links
Woodlands Road from Blackpool Road to Clifton Drive unnamed new
street from Blackpool Road to the railway Stanley Road from
Cambridge Road to Clifton Drive Cambridge Road from Ansdell Road

to Church Road Park Avenue from Stanley Road to Willows Avenue
Willows Avenue from Cambridge Road to Clifton Drive Riversleigh
Avenue from Cambridge Road to Clifton Drive Elms Avenue from
Church Road to Clifton Drive Eden Avenue from Church Road to
Clifton Drive Agnew Street from Westby Street to the railway
Cleveland Road from Bannister Street to Cleveland Road East
Cleveland Road East from Westby Street to Cleveland Road Victoria
Street from Albert Street to Preston Road Trent Street from Warton
Street to Liggard Brook Albert Street from Victoria Street to Liggard
Brook unnamed road from Preston Road to Lytham Shipbuilding
Yard and the roadways on the bridges carrying the Blackpool High-
way over the private road in Lytham Hall Park in the Watchwood
Road at Lytham Passenger Station in Station Road in Park Road and
in Saltcotes Road over the Lancashire and Yorkshire and London and
North Western Joint Railway.

A.D. 1905.

Lytham.

(b) TRAMWAYS:

The tramways belonging to the Blackpool St. Annes and Lytham
Tramway Company Limited or their successors.

THIRD SCHEDULE.

*List of Streets and parts of Streets throughout which the Undertakers are to
lay down suitable and sufficient Distributing Mains for the purposes of
general supply within a period of Two Years after the commencement
of this Order.*

Albert Street Warton Street from Albert Street to Grosvenor Street
Grosvenor Street West Beach from Lowther Terrace to Central Beach Central
Beach East Beach from Central Beach to Grosvenor Street Station Road from
East Beach to Clifton Street Clifton Street from Station Road to Clifton
Square Dicconson Terrace from Central Beach to Clifton Square Clifton
Square Lowther Terrace from West Beach to Church Road Church Road
from Market Square to Fairlawn Road Market Square from Clifton Square
to Church Road Fairlawn Road from Church Road to Clifton Drive Clifton
Drive from Fairlawn Road to Ansdell Road.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current
of one thousand ampères flowing under an electro-motive force of
one volt during one hour.

[Ch. cxiv.] *Electric Lighting Orders Confirmation* [5 EDW. 7.]
(No. 6) Act, 1905.

A.D. 1905.

SECTION 1.

Lytham.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter :—

(i) For lighting purposes—

For any amount up to twenty units ten shillings and for each unit over twenty units sixpence :

(ii) For all other purposes—

For any amount up to twenty units five shillings and for each unit over twenty units threepence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

ST. ALBANS RURAL ELECTRIC LIGHTING.

St. Albans Rural.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the St. Albans and District Electric Supply Company Limited in respect of the Parishes of St. Michael Rural St. Stephen St. Peter Rural and Sandridge Rural in the Rural District of St. Albans in the County of Hertford.

Short title.

1. This Order may be cited as the St. Albans Rural Electric Lighting Order 1905.

Incorporation
of Electric
Lighting
(Clauses) Act
1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the St. Albans and District Electric Supply Company Limited being a company registered under the Companies Acts 1862 to 1900 with limited liability whose registered offices are situated at Evelyn House 101 Finsbury Pavement in the city of London.

Area of supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act

1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

A.D. 1905.
 St. Albans
 Rural.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.

Power to break
 up streets.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Compulsory
 works.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Maximum
 prices.

8. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Undertakers a supply of electrical energy to premises having a separate supply unless he shall have previously agreed to pay to the Undertakers such minimum annual sum as will give to the Undertakers a reasonable return on the capital expenditure and other standing charges incurred by the Undertakers to meet the possible maximum demand of such person. The sum to be so paid shall be determined in default of agreement by arbitration.

As to supply
 of electricity
 where con-
 sumer has se-
 parate supply.

9. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is five hundred pounds.

Deposit.

10. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
 ment of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The parishes of St. Michael Rural St. Stephen St. Peter Rural and Sandridge Rural in the rural district of St. Albans as respectively constituted at the commencement of this Order.

A.D. 1905.

St. Albans
Rural.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Clarence Park Road Cavendish Road Albion Road Royal Road Laurel Road Blandford Road Glenferrie Road Sandfield Road Harleston Road Tess Road Arthur Road Burnham Road York Road Brampton Road Warwick Road Battlefield Road Lancaster Road Woodstock Road Blenheim Road Beaumont Avenue Sutton Road Castle Road Hedley Road Kimberley Road.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Hatfield Road (from the boundary of the city of St. Alban to the eastern corner of the Cemetery) Clarence Park Road London Road (from the boundary of the city of St. Alban to the Old Mile House).

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

WARE ELECTRIC LIGHTING..

A.D. 1905.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the North Metropolitan Electrical Power Distribution Company Limited in respect of the Urban District of Ware in the County of Hertford.

Ware.

1. This Order may be cited as the Ware Electric Lighting Order 1905. Short title.
2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order. Incorporation of Electric Lighting (Clauses) Act 1899.
3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the North Metropolitan Electrical Power Distribution Company Limited being a company registered under the Companies Acts 1862 to 1900 with limited liability whose registered offices are situated at Evelyn House Finsbury Pavement London E.C. Undertakers.
4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade. Area of supply.
5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the railway which is also mentioned in that schedule. Power to break up streets &c.
6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order. Compulsory works.
7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order. Maximum prices.
8. The sum to be deposited or secured in pursuance of section 5 of the Schedule to the Electric Lighting (Clauses) Act 1899 is five hundred pounds. Deposit.
9. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Undertakers a supply of electrical energy to premises having a separate supply As to supply of electricity where consumer has separate supply.

[Ch. cxiv.] *Electric Lighting Orders Confirmation* [5 EDW. 7.]
(No. 6) Act, 1905.

A.D. 1905, unless he shall have previously agreed to pay to the Undertakers such
Ware. minimum annual sum as will give to the Undertakers a reasonable return on the capital expenditure and will cover other standing charges incurred by the Undertakers to meet the possible maximum demand of such person. The sum to be so paid shall be determined in default of agreement by arbitration.

Purchase by
local autho-
rity.

10.—(1) The local authority may at the expiration of a period of 16 years from the commencement of this Order or at the expiration of any subsequent period of seven years give to the Undertakers two years' notice in writing requiring the Undertakers to sell to them the undertaking authorised by this Order and at the expiration of any such notice the Undertakers shall sell and the local authority shall purchase the said undertaking (including all lands buildings works materials and plant within the district of the local authority suitable to and used by the Undertakers for the purposes of the undertaking) upon the terms of the payment by the local authority to the Undertakers of a sum equal to the fair market value of the undertaking as a going concern but without any allowance for compulsory sale such value to be determined in default of agreement by arbitration.

(2) The Board of Trade may determine any question which arises with reference to the purchase which is not to be determined by arbitration and in default of agreement as to the date on which the purchase is to take effect may fix that date.

(3) From the date on which the purchase takes effect the undertaking shall vest in the local authority freed from all debts mortgages or other similar obligation of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity within the area of supply under this Order or the principal Act shall cease and determine and shall vest in the local authority who shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(4) The power of purchase given by this section shall be in addition to and not in derogation of the power of the local authority to purchase under section 2 of the Electric Lighting Act 1888.

Ware Electric
Lighting
Order 1901
repealed.

11. The Ware Electric Lighting Order 1901 is hereby repealed without prejudice to anything done or suffered thereunder.

Commence-
ment of Order.

12. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

A.D. 1905.

Ware.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Ware as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority and the Railway which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS :

Walton Road Warner Road Scots Road Viaduct Road road over New River Bridge at Amwell End Jeffries Road Grasmere Road Redan Road Milton Road.

(b) RAILWAYS :

Level crossing on the Great Eastern Railway at Amwell End.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Amwell End Ware Bridge Bridge Foot Street High Street Baldock Street New Road.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

[Ch. cxiv.] *Electric Lighting Orders Confirmation*
(No. 6) Act, 1905.

[5 Edw. 7.]

A.D. 1905.

Ware.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

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